consent to the application of section 1562(g)(1) (relating to tolling of statute of limitations on assessment of deficiencies).

Because this Treasury decision merely provides temporary regulations designed to inform taxpayers how to apportion the single $25,000 surtax exemption allowed to certain members of a controlled group of corporations under section 1561(a) for their taxable years which include December 31, 1963, and how to make the election provided by section 1562(a)(1) with respect to such date, it is found unnecessary to issue this Treasury decision with notice and public procedure thereon under section 4(a) of the Administrative Procedure Act, approved June 11, 1946, or subject to the effective date limitation of section 4(c) of that Act.

This Treasury decision is issued under the authority contained in section 7805 of the Internal Revenue Code of 1954 (68A Stat. 917; 26 U.S.C. 7805).

[SEAL] MORTIMER M. CAPLIN,
Commissioner of Internal Revenue.

Approved: May 11, 1964.

STANLEY S. SURREY,
Assistant Secretary of the Treasury.

[F.R. Doc. 64-4862; Filed, May 13, 1964; 8:48 a.m.]

SUBCHAPTER E—ALCOHOL, TOBACCO, AND OTHER EXCISE TAXES

[T.D. 6729]

PART 194—LIQUOR DEALERS

Records of Disposition

Correction

In F.R. Doc. 64-4705, appearing at page 6255 of the issue for Tuesday, May 12, 1964, the following section heading should appear immediately after the amendatory language of paragraph 1:

§ 194.226 Records of disposition.

Title 33—NAVIGATION AND NAVIGABLE WATERS

Chapter I—Coast Guard, Department of the Treasury

SUBCHAPTER A—GENERAL

[CGFR 64-23]

PART 8—REGULATIONS, UNITED STATES COAST GUARD RESERVE

By virtue of the authority contained in section 633, Title 14, U.S. Code, the following amendment is hereby prescribed and shall become effective upon publication in the FEDERAL REGISTER.

1. Section 8.6210(c) is hereby amended to read as follows:

§ 8.6210 Mandatory discharge for age.

* * * * *

(c) *Reserve enlisted personnel.* Unless retired with pay or transferred to the Retired Reserve, an enlisted person shall be discharged upon reaching age 62, or age 64 if retained to complete 20 years of satisfactory Federal service.

Approved:

JAMES A. REED,
Assistant Secretary.

[F.R. Doc. 64-4802; Filed, May 13, 1964; 8:47 a.m.]

Chapter II—Corps of Engineers, Department of the Army

PART 203—BRIDGE REGULATIONS

Blackwater River, Va.

Pursuant to the provisions of section 5 of the River and Harbor Act of August 18, 1894 (28 Stat. 362; 33 U.S.C. 499), § 203.245 is hereby amended with respect to paragraph (g) by adding subparagraph (3-b) to govern the operation of the Virginia Department of Highways bridge across Blackwater River near South Quay, Virginia, effective 30 days after publication in the FEDERAL REGISTER, as follows:

§ 203.245 Navigable waters discharging into the Atlantic Ocean south of and including Chesapeake Bay and into the Gulf of Mexico, except the Mississippi River and its tributaries and outlets; bridges where constant attendance of draw tenders is not required.

* * * * *

(g) *Waterways discharging into Atlantic Ocean between Chesapeake Bay and Charleston.* * * *

(3-b) Blackwater River, Va.; Virginia Department of Highways bridge on Route 189 at South Quay. At least 24 hours' advance notice required.

* * * * *

[Regs., April 30, 1964, 1507-32 (Blackwater River, Va.)—ENGCW-ON] (Sec. 5, 28 Stat. 362; 33 U.S.C. 499)

J. C. LAMBERT,
Major General, U.S. Army,
The Adjutant General.

[F.R. Doc. 64-4777; Filed, May 13, 1964; 8:45 a.m.]

Title 36—PARKS, FORESTS, AND MEMORIALS

Chapter I—National Park Service, Department of the Interior

PART 7—SPECIAL REGULATIONS RELATING TO PARKS AND MONUMENTS

Grand Teton National Park, Wyoming; Boating

Notice is hereby given, pursuant to the authority contained in section 3 of the Act of August 25, 1916 (39 Stat. 535; 16 U.S.C. 3), 245 DM-1 (28 F.R. 915), National Park Service Order No. 14 (19 F.R. 8824), and Regional Director, Midwest Region Order No. 3 (21 F.R. 1494), as amended, that § 7.22 of Title 36, Code of Federal Regulations, is amended as set forth below. The purpose of this amendment is to modify the prohibition on motor-propelled craft on Jenny Lake, and to provide for safety through flexibility of the boating season on waters within the park in accordance with weather conditions rather than on a calendar basis.

The following amendment shall become effective upon publication in the FEDERAL REGISTER in order to give the public the benefits of its provisions as soon as possible.

Subparagraph (6) of paragraph (g) of § 7.22 is amended to read as follows:

§ 7.22 Grand Teton National Park.

* * * * *

(g) *Boats.* * * *

(6) *Prohibited operation.* * * *

(v) Motor-propelled waterborne craft are prohibited on all park waters except Jackson, Jenny, and Phelps Lakes. On Jenny Lake, motor-propelled craft shall be restricted to motors not in excess of seven and one-half (7.5) horsepower. Additionally, on Jenny Lake, an authorized boating concessioner may operate motor-propelled boats under conditions specified by the Superintendent.

* * * * *

(viii) All park waters may be closed to waterborne craft, by the posting of appropriate signs, when snow and ice conditions prevent safe launching and operation of boats.

* * * * *

(xiii) The Superintendent may authorize motor-propelled craft engaged in official business pertaining to the park to operate in closed or restricted water areas.

* * * * *

FRED C. FAGERGREN,
Superintendent,
Grand Teton National Park.

[F.R. Doc. 64-4788; Filed, May 13, 1964; 8:46 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 3385]

[Wyoming 0285750]

WYOMING

Partly Revoking Executive Order No. 7489 of November 14, 1936 and Departmental Order of March 11, 1925

By virtue of the authority vested in the President by section 1 of the Act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), and by virtue of the authority contained in the Act of December 29, 1916 (39 Stat. 865; 43 U.S.C. 300), as amended, it is ordered as follows:

Executive Order No. 7489 of November 14, 1936, which enlarged the Elk Refuge established by Executive Order No. 2177 of April 21, 1915, the name of which was changed to the National Elk Refuge by Presidential Proclamation No. 2416 of July 25, 1940, and the Departmental order of March 11, 1925, creating Stock Driveway Withdrawal No. 177, Wyoming No. 29, are hereby revoked so far as they affect the following-described land:

SIXTH PRINCIPAL MERIDIAN

T. 42 N., R. 115 W.,
Sec. 12, W½NW¼NW¼.

Containing approximately 20 acres.

The revocations made by this order are in furtherance of an exchange under the provisions of the Act of June 28, 1934 (48 Stat. 1272; 43 U.S.C. 315g), as amended, by which the offered land will benefit a Federal land program. They are, therefore, not subject to the provisions of section 2276(c) of the Revised Statutes as amended by section 2 of the Act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 852(c)), granting to certain states a preference right of application upon the revocation of an order of withdrawal.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

MAY 7, 1964.

[F.R. Doc. 64-4779; Filed, May 13, 1964; 8:45 a.m.]

[Public Land Order 3386]

[Washington 04812]

WASHINGTON

Withdrawal for Forest Service Recreation Area

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

Subject to valid existing rights, the minerals in the following-described national forest lands are hereby withdrawn from prospecting, location, entry and purchase under the mining laws but not from leasing under the mineral leasing laws, in aid of programs of the Forest Service, Department of Agriculture, for use of the surface as recreation areas:

WILLAMETTE MERIDIAN

OLYMPIC NATIONAL FOREST

Bear Gulch Recreation Area (Amended)

T. 23 N., R. 5 W., partially unsurveyed:
Sec. 10, SW¼NE¼NW¼.

Wynoochee River Falls Forest Camp Addition

T. 23 N., R. 7 W.,
Sec. 13, S½SW¼SW¼.

Collins Recreation Area Addition

T. 25 N., R. 3 W.,
Sec. 2, S½NW¼SE¼SE¼.

Rainbow Recreation Area Addition

T. 26 N., R. 2 W.,
Sec. 3, NE¼NE¼SW¼.

Elkhorn Recreation Area (Amended)

T. 26 N., R. 3 W., (unsurveyed)
Sec. 19, E½NE¼SE¼;
Sec. 20, NW¼SW¼.

Dungeness Recreation Area Addition

T. 29 N., R. 3 W.,
Sec. 30, SE¼NE¼SW¼ and NE¼SE¼SW¼.

The areas described aggregate approximately 125 acres.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

MAY 7, 1964.

[F.R. Doc. 64-4780; Filed, May 13, 1964; 8:45 a.m.]

[Public Land Order 3387]

[Oregon 013864]

OREGON

Withdrawal for Forest Service Administrative Sites

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

Subject to valid existing rights, the minerals in the following-described national forest lands in the Umatilla National Forest are hereby withdrawn from prospecting, location, entry and purchase under the mining laws of the United States but not from leasing under the mineral leasing laws, in aid of programs of the Forest Service, Department of Agriculture, for use of the surface as administrative sites:

WILLAMETTE MERIDIAN

UMATILLA NATIONAL FOREST

Duncan Guard Station

T. 1 N., R. 36 E.,
Sec. 9, NE¼SE¼ and E½NW¼SE¼.

Tollgate Guard Station

T. 4 N., R. 38 E.,
Sec. 33, SW¼SW¼NW¼ and N½NW¼SW¼.

Bone Springs Lookout Site

T. 5 N., R. 39 E.,
Sec. 28, SE¼SE¼SW¼, and SW¼SW¼SE¼.

Lookout Mountain Lookout Site

T. 4 N., R. 40 E.,
Sec. 3, S½NE¼SE¼.

Fry Meadows Guard Station

T. 4 N., R. 40 E.,
Sec. 32, NW¼NE¼NE¼.

Elk Flat Administrative Site

T. 5 N., R. 40 E.,
Sec. 13, S½NE¼NW¼, N½SE¼NW¼, NW¼NE¼SE¼, NE¼NW¼SE¼, and SW¼NE¼.

Long Meadows Guard Station Site

T. 5 N., R. 42 E.,
Sec. 6, W½ lot 3, and E½ lot 4.

Hoodoo Lookout Tower Site

T. 5 N., R. 42 E.,
Sec. 6, NE¼ lot 2.

Arbuckle Lookout Tower Site

T. 4 S., R. 29 E.,
Sec. 30, S½SW¼NE¼SE¼ and N½NW¼SE¼SE¼.

Pearson Lookout Tower Site

T. 6 S., R. 33 E.,
Sec. 28, SE¼NW¼NE¼.

Tower Mountain Lookout Tower Site

T. 6 S., R. 34 E.,
Sec. 13, NW¼NE¼NW¼.

Crane Flats Administrative Site

T. 8 S., R. 35½ E.,
Sec. 15, SW¼NW¼NE¼, SW¼NE¼, and N½SE¼NE¼.

The areas described aggregate approximately 390 acres.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

MAY 7, 1964.

[F.R. Doc. 64-4781; Filed, May 13, 1964; 8:45 a.m.]

[Public Land Order 3388]

[Montana 056377, 056837, 056883]

MONTANA

Adding of Lands to Bitterroot National Forest

By virtue of the authority vested in the President by section 1 of the Act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and by section 1 of the Act of July 20, 1939 (53 Stat. 1071; 16 U.S.C. 471b), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Subject to valid existing rights, the following-described public lands are hereby added to and reserved for the protection of watersheds as parts of the Bitterroot National Forest, and the boundaries of the Forest are adjusted accordingly:

MONTANA PRINCIPAL MERIDIAN

BITTERROOT NATIONAL FOREST

T. 3 N., R 20 W.,
Sec. 6, lots 7, 8, 9, 10, 11 and 12.
T. 5 N., R. 20 W.,
Sec. 34, SE¼SW¼, N½SE¼ and NE¼.
T. 10 N., R. 20 W.,
Sec. 20, lot 6.

The areas described aggregate 568.1 acres.

2. Executive Orders No. 1424 and 1425 of October 24, 1911, and No. 1504 of March 25, 1912, reserving the lands for use of the Forest Service in connection with the administration of the national forest, are hereby revoked.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

MAY 7, 1964.

[F.R. Doc. 64-4782; Filed, May 13, 1964; 8:45 a.m.]

[Public Land Order 3389]

[Wyoming 0308886]

WYOMING

Withdrawing Lands for Use of Department of the Air Force as a Weather Research Station

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

Subject to valid existing rights, the following-described public lands are hereby withdrawn from all forms of appropriation under the public land laws, including the mining laws, and from leasing under the mineral-leasing laws, and disposals of materials under the Act of July 31, 1947 (61 Stat. 681; 30 U.S.C.